HILCHOT PESAH - SHULHAN ARUKH

Nullified Hames, Reawakening & Noten Taam Li-Fgam: Mixtures on Pesah

Hilchot Pesah Siman 447

Recap of Previous Classes

Class	Simanim	Topics Covered
Class 1	429–432	30 days before Pesach; month of Nisan; Shabbat HaGadol; Bedikat Chametz timing; the bracha
Class 2	432–433	Why "al biur" not "al bedikat"; candle vs torch; where to check; high/low places; hole in walls; synagogues
Class 3	434–437	After Bedikah — bitul night and day; chametz timeline; appointing agents; missed bedikah; renting a house
Class 4	438–440	Mouse/child with chametz; kezayit threshold; kavua principle; non-Jew depositing chametz
Class 5	443–444	Chametz on Erev Pesach after six hours; calculating the times; smelling chametz; Erev Pesach on Shabbat
Class 6	446–447:1–2	Finding chametz during Pesach; muktze on Yom Tov; introduction to kashrut principles; be-mashehu rule
Class 7	**447:4, 5, 10**	**Chozer ve-ne'or (reawakening); practical implications for hechsherim; noten ta'am li-fgam on Pesach**

Siman 447 (Continued) — Mixtures of Chametz on Pesach

Recap of Key Principles from Last Week

1. **Be-mashehu on Pesach:** During the year, lach be-lach (liquid mixtures) are nullified at 1 in 60. On Pesach, even 1 in 1,000 is **not** nullified (be-mashehu) — this is de-rabbanan (Rabbeinu Tam disagrees entirely).
2. **Two reasons for this chumra:** (a) Severity of chametz (karet). (b) Davar she-yesh lo matirin — chametz will become permitted after Pesach, so don't rely on nullification now.
3. **Two hot solids touching:** Kedei netilah / kedei klipah still applies on Pesach — no change from the rest of the year. Be-mashehu only applies where you'd normally need 1 in 60.

4. **Timing:** Be-mashehu only applies to mixtures that occurred **during Pesach itself**. Mixtures from before Pesach (even from chatzot on Erev Pesach) follow the regular 1 in 60 rule.

Se'if 4 — Does Nullified Chametz "Reawaken" on Pesach? (חוזר וניעור)

This is one of the most consequential halachot for everyday Pesach observance.

The scenario: Chametz got mixed into non-chametz **before Pesach**, and there was 60 times more non-chametz — so it was properly nullified according to regular kashrut rules. Now Pesach arrives. Does the nullified chametz "come alive again" (chozer ve-ne'or) and become prohibited?

Two Opinions in the Shulchan Aruch

Opinion	Position	Who Holds It	Ramification
Stam (default opinion)	It does **NOT** reawaken. Once nullified before Pesach, it stays nullified throughout Pesach. You may eat the food on Pesach.	Rosh, Rashba, and others	More lenient — food nullified before Pesach is permitted on Pesach
Yesh Cholkim (some disagree)	It **DOES** reawaken. When Pesach begins, the nullified chametz becomes active again and prohibits the mixture.	Understood to be the Rambam (as interpreted by the Ravad HaMagid — not explicit in the Rambam)	More strict — even food nullified before Pesach cannot be eaten on Pesach

If It Reawakens — What Was the Point of Nullification Before Pesach?

The second opinion still acknowledges that nullification before Pesach has real effects:

1. **Erev Pesach afternoon (from chatzot until nightfall):** Even according to the yesh cholkim, the food is permitted during this window — it was nullified, and it only reawakens when Pesach itself begins at nightfall.
2. **Ta'am (taste) vs. Mamashut (substance):** Even the yesh cholkim agree that if only **taste** remains (no physical particles of chametz), the taste does **not** reawaken. Only when there is **mamashut** — actual physical substance/particles of chametz in the mixture — does it reawaken.

Practical example of the distinction:

- Bread fell into a large pot of soup before Pesach. You **strained** the soup and removed all pieces. Only taste remains. → **Everyone agrees** the soup is permitted on Pesach. Ta'am doesn't reawaken.
- Bread fell into soup before Pesach. You **did not strain** it. Tiny particles of bread remain dissolved in the soup. → **First opinion:** permitted (doesn't reawaken). **Second opinion:** prohibited on Pesach (mamashut reawakens).

Does Reawakening Require Heat?

Even among those who hold it reawakens, there is a further machloket:

View	Position
Some Acharonim	Reawakening only occurs when **heat is applied** on Pesach — it doesn't happen automatically. If you don't cook the food on Pesach, it doesn't reawaken even according to the yesh cholkim.
Mishnah Berurah	Seems to be machmir (strict) — reawakening may happen even without heat

Important to note: We are stacking multiple layers of chumra here:

1. The entire be-mashehu rule on Pesach is de-rabbanan (Rabbeinu Tam disagrees entirely)
2. Within this de-rabbanan, there's a machloket whether it reawakens
3. Even among those who say it reawakens, there's a machloket whether heat is required
4. All of this assumes chametz was actually present in the first place

---

The Halacha

Shulchan Aruch (Sephardim): Follows the **stam** — it does **not** reawaken. Once nullified before Pesach, the food is permitted on Pesach. This is the opinion of Chacham Ovadia Yosef.

Rama (Ashkenazim): Makes a **compromise**:

Type of Mixture	Rama's Ruling
Lach be-lach (pure liquid with liquid — completely intermingled, no solid particles)	Lenient — follows first opinion. Does **not** reawaken.
Yavesh be-yavesh or solid in liquid (any element of solid involved — e.g., bread fell into wine)	Strict — follows second opinion. **Does** reawaken on Pesach.

Practical consequence: Since most real-world mixtures involve some element of solid (even tiny particles), the Rama is strict in most cases. Only pure liquid-to-liquid mixtures (e.g., two liquids poured together) get the leniency.

Massive Practical Implications: Do You Need a Hechsher on Natural Products?

Understanding Se'if 4 has enormous practical ramifications for what foods require a Pesach hechsher.

The Logic (Following the Shulchan Aruch / Sephardi Psak)

Take the example of **olive oil** (or salt, sugar, coffee, tea, yoghurt, rice cakes, crisps, milk, etc.):

1. **Check the ingredients** — if the label says 100% olive oil, that's what you're getting. We live in a country with strict manufacturing regulations and allergy/allergen disclosure requirements. What's on the label is what's in the product.
2. **Theoretical concern:** Perhaps in the production facility, a non-Jewish worker's bread crumb fell in, or some cross-contamination occurred.

3. **Even if that happened** (which is highly unlikely in modern clinical manufacturing conditions) — it would have been nullified before Pesach (well over 1 in 60).
4. **Concern:** When you heat the oil on Pesach, it reawakens.
5. **Shulchan Aruch:** It does **not** reawaken → permitted.
6. **Even for the yesh cholkim:** You don't have to assume chametz was even present (see Se'if 5 below).

The Ruling

For Sephardim (following Shulchan Aruch and Chacham Ovadia):

All natural products whose ingredients are clearly listed and contain no chametz grains (wheat, barley, oats, rye, spelt) **do not need a Pesach hechsher**, provided you buy them before Pesach. This includes: olive oil, vegetable oil, salt, sugar, coffee, tea, yoghurt, rice cakes, crisps, milk, and similar products.

If you want to be machmir and follow the Rama / Ben Ish Chai / yesh cholkim — that is praiseworthy. But it should not be imposed on the community, especially given the significant price differences for Pesach-certified products.

Should You Buy Before Pesach?

Timing	Recommendation
Before Pesach (ideal)	Buy natural products before Pesach and store/freeze them. This covers all opinions — even the yesh cholkim agree nullification before Pesach is effective for ta'am.
On Chol HaMoed	There is a concern that the product was manufactured on 1st/2nd day Chag (during Pesach) and arrived at the supermarket on Chol HaMoed — in which case nullification before Pesach wouldn't apply. However, based on Se'if 5 (below), there are strong grounds to say this is also permitted since you don't have to assume chametz was present.

Ashkenazi Guests

If you are Sephardi, hosting Ashkenazi guests, and bought products without a Pesach hechsher:

- Based on Se'if 4 alone, there could be a problem (the Rama holds it reawakens in most cases).
- Based on Se'if 5 (below), there are strong grounds for leniency even for Ashkenazim.
- **Best practice:** At minimum, disclose to your guests what you're following. There are grounds for leniency, but this is a question that requires further discussion among the poskim.

Se'if 5 – Salting Before Pesach; The Principle of "Don't Assume Chametz Is Present"

Shulchan Aruch: If you had dried meat, chicken, fish, or cheese that was salted before Pesach, and you weren't careful about the salt (didn't check that the salt was free of chametz), and you salted it in a chametz utensil — **you may eat these foods on Pesach.**

Why Is It Permitted? Three Reasons

Reason 1 — Salting doesn't extract from utensils:

- Melichah (salting) does not have the ability to extract bliot (absorbed tastes) from the walls of utensils.
- This is an important principle in all of kashrut — only heat (cooking, boiling, frying) extracts bliot. Salting does not.
- Therefore, salting in a chametz utensil is not a concern.

Reason 2 — Stam kelim einam ben yoman:

- The default assumption about any utensil is that it hasn't been used in the last 24 hours (stam kelim einam ben yoman).
- After 24 hours, any absorbed taste becomes pagum (degraded) — noten ta'am li-fgam — which is permitted (see Se'if 10 below).

Reason 3 — The crucial principle: אין מחזיקין איסורא / We do not presume prohibition:

The Shulchan Aruch states: **We do not assume that chametz is present.** Don't presume things are problematic or prohibited without evidence.

- Some people approach Pesach thinking chametz is "lurking in every corner, waiting to catch you."
- The halacha says: the default presumption is that things are **not** chametz.
- Unless you actually saw chametz, or there's a real, specific reason to suspect it — you don't have to worry.
- This applies even to the salt used — you don't have to assume there was chametz in the salt.

What Does "Salting" Mean in This Context?

- Salting in kashrut means salting **to the extent that the food is inedible** because of the salt (heavy salting for preservation, then washing off).
- This is not regular seasoning or light salting.

Exception: Salting on Pesach Itself in Chametz Utensils

Shulchan Aruch: If you salted food **on Pesach itself** in chametz utensils and then soaked it in water in those utensils — **yesh lehachmir** (one should try to be stringent and not eat it).

- Note: "Yesh lehachmir" (one should be stringent) is not the same as "yesh cholkim" (some disagree). It means: ideally be strict, but bedi'avad it would be permitted.

The Rama's Position

Rama: The custom in Ashkenazi lands is to be strict in the first instance and not eat foods salted with salt that wasn't verified chametz-free. However, even the Rama says: if you **washed the meat three times thoroughly** (soaked, rinsed, removed all traces of salt), you may eat it.

Why is the Rama strict?

1. He holds it reawakens (chozer ve-ne'or) — see Se'if 4.
2. He doesn't fully rely on the presumption that chametz isn't present.

However: The Rama was discussing salt that was "lying around" — loose salt in an open kitchen, hundreds of years ago, where chametz could plausibly be mixed in. In modern manufacturing conditions — sterile factories, single-product production lines, allergy regulations, cross-contamination controls — even the Rama might agree the concern is negligible.

Se'if 10 — Noten Ta'am Li-Fgam on Pesach (נותן טעם לפגם)

This is another fundamental machloket between the Shulchan Aruch and Rama with far-reaching practical consequences.

Background: Noten Ta'am Li-Fgam During the Year

- When food taste has been absorbed in the walls of a utensil for more than **24 hours**, the taste becomes **pagum** (degraded/spoiled).
- If you then cook in that utensil, the degraded taste that transfers into the food is called **noten ta'am li-fgam** — "giving a spoiled taste."
- **Year-round halacha:** Lechatchila (ab initio) — don't cook in a non-kosher pot. Bedi'avad (post facto) — the food is completely **permitted**. The spoiled taste doesn't prohibit.
- **From the Torah:** Even within 24 hours, noten ta'am li-fgam is permitted. The Chachamim forbade within 24 hours as a precaution.

The Question on Pesach

Since we found that the Chachamim imposed a special stringency on Pesach (be-mashehu — even a drop prohibits), should we **extend** this stringency to noten ta'am li-fgam as well? Should we say that on Pesach, even degraded taste prohibits?

The Machloket

Opinion	Ruling	Reasoning
Shulchan Aruch	Noten ta'am li-fgam is **permitted on Pesach** — same as the rest of the year	We don't extend chumrot beyond what the Chachamim explicitly stated. What we found (be-mashehu), we found. We don't add to it.
Rama	Noten ta'am li-fgam is **prohibited on Pesach**	Since we found the Chachamim were strict in one area, we should extend the stringency to other areas as well. This was the custom in Ashkenaz.

The Rama adds: Even a "double" leniency — be-mashehu + noten ta'am li-fgam combined — is still asur according to the Ashkenazi custom.

Practical Scenario

You accidentally cooked Pesach food in a **chametz pot** that was clean and hadn't been used for more than 24 hours:

According to…	Is the food permitted?
Shulchan Aruch (Sephardim)	✅ **Yes** — noten ta'am li-fgam, same leniency as the rest of the year
Rama (Ashkenazim)	❌ **No** — on Pesach, even degraded taste prohibits

Important: This is one of the major reasons Ashkenazi Pesach practice is significantly more stringent than Sephardi practice. The Shulchan Aruch refuses to extend chumrot beyond what the Gemara explicitly stated; the Rama extends them based on the spirit of the Pesach stringency.

Summary of Key Halachot

Se'if	Key Takeaways
447:4 (chozer ve-ne'or)	Chametz nullified before Pesach (1 in 60): Shulchan Aruch (stam) = does NOT reawaken on Pesach. Yesh cholkim = does reawaken. Halacha for Sephardim: does not reawaken (Chacham Ovadia). Rama compromises: lach be-lach = lenient; solid involved = strict.
447:4 (ta'am vs mamashut)	Even the yesh cholkim agree: if only taste remains (no physical particles — e.g., you strained the soup), it does NOT reawaken. Only mamashut (substance) reawakens.
447:4 (heat)	Even among those who say it reawakens: machloket whether heat is needed to trigger reawakening. Some Acharonim: no heat = no reawakening.
447:4 (practical)	For Sephardim: natural products (oil, salt, sugar, tea, coffee, yoghurt, rice cakes, milk) do NOT need a Pesach hechsher if ingredients are clearly listed and chametz-free. Buy before Pesach ideally. Strong grounds to be lenient even on Chol HaMoed.
447:5 (salting)	Food salted before Pesach with unchecked salt, in chametz utensils: permitted. Three reasons: melichah doesn't extract from utensils; stam kelim einam ben yoman; ein machzikin issura (don't assume chametz is present).
447:5 (don't assume)	Critical principle: we do NOT presume chametz is lurking. Default is things are kosher. Don't assume chametz contamination in modern manufacturing without specific evidence.
447:5 (Rama)	Ashkenazi custom: strict about unchecked salt. But was discussing loose salt in pre-modern conditions — in modern factories, even the Rama might agree it's fine.
447:10 (noten ta'am li-fgam)	Cooked in a chametz pot not used in 24+ hours: Shulchan Aruch = permitted on Pesach (don't extend chumrot). Rama = prohibited (extend the Pesach stringency). Major practical difference between Sephardi and Ashkenazi Pesach.

Why Sephardi Pesach Is "Easier" — Summary of the Fundamental Differences

Issue	Shulchan Aruch (Sephardim)	Rama (Ashkenazim)
Be-mashehu (even a drop)	Applies on Pesach itself only	Applies on Pesach itself only
Chozer ve-ne'or (reawakening)	Does **not** reawaken	Reawakens in most cases (except pure liquid-liquid)
Ein machzikin issura (don't assume chametz)	Applies fully — don't assume contamination	More cautious — custom to be strict
Noten ta'am li-fgam	Permitted on Pesach (same as year-round)	Prohibited on Pesach
Need for Pesach hechsher on natural products	Generally **not needed** if ingredients are clear	Generally **needed** as a stringency

---

Watch or listen to this shiur: youtu.be/cuTECxA06BI · More shiurim: rabbikada.com